

TENTATIVE RULING

Case: **LVNV Funding LLC v. Vidales**
 Case No. CV-2022-0999

Hearing Date: **February 19, 2026** **Department Eleven** **9:00 a.m.**

Defendant Mark Vidales' motion to: (1) strike unauthorized appearance and filings; (2) recall and quash writ of execution; (3) set aside earnings withholding order; (4) order restitution; and (5) alternatively, vacate void post-judgment orders is **DENIED**. The Court finds that defendant fails to provide any relevant legal authority or argument in support of the relief sought. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Nonetheless, the Court finds that the attorneys and law firms representing plaintiff LVNV Funding LLC in this matter were authorized to act on plaintiff's behalf.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Smith v. Jurado**

Case No. CV-2024-1895

Hearing Date: **February 19, 2026** **Department Eleven** **9:00 a.m.**

Defendant Matthew Jurado's motion to compel deposition of plaintiff Carly Smith and for monetary sanctions is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 2025.450.) The Court finds that defendant failed to meet and confer prior to the filing of this motion. (Code Civ. Proc., §§ 2016.040, 2025.450, subd. (b)(2); see generally Phan Decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.